



02/15/2022
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21-MED-01-0071
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CITY OF OXFORD

and

**OXFORD PROFESSIONAL FIREFIGHTERS
IAFF LOCAL 5272
(Firefighter/Paramedics and Captains)**

COLLECTIVE BARGAINING AGREEMENT

SERB No. 2021-MED-01-0071

January 1, 2021 to December 31, 2023

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THIS AGREEMENT WAS MADE AND ENTERED INTO by and between the City of Oxford, Ohio hereinafter referred to as the "City" or "Employer" and the Oxford Professional Firefighters, IAFF Local 5272, hereinafter referred to as the "Union" or "Employee."

ARTICLE 1

CONTRACT ADMINISTRATION/PREAMBLE

Section 1.1. This Agreement is entered into between the City of Oxford, Ohio ("City" or "Employer") and the City of Oxford Professional Firefighters members of I.A.F.F. Local 5272 ("Employee" or "Union"). Any reference to he, him, or their includes she, her, or hers. It is the purpose of this agreement to achieve and maintain harmonious relations between the Employer and the Union.

Section 1.2. The Employer and the Union recognize the need to provide efficient service to the public and to maintain the quality of service. Further, both parties agree to the need for establishing and maintaining a sound labor-management relationship and mutually agree to continue working toward this goal. Each side has been afforded the opportunity to put forth all its proposals and to bargain in good faith and both parties agree that this Agreement expresses the results of their negotiations.

ARTICLE 2

DURATION OF AGREEMENT

Section 2.1. This Agreement shall become a three (3) year contract effective January 1, 2021 after it has been mutually approved by Union Membership and Oxford City Council and shall remain in effect through December 31, 2023 (the expiration date).

Section 2.2. An effort should be made to start negotiations at least 90 days prior to the expiration date of this Agreement. Either party may notify the State Employment Relations Board (SERB) and the other party in writing that it wishes to modify the agreement.

Section 2.3. This Agreement shall remain in full force and effect until a successor agreement is reached by the parties or final ruling of a conciliator. This Agreement may be reopened at any time based upon mutual consent from both parties. Neither party has any obligation, either under this Agreement or otherwise, to negotiate modifications to any Article or provision of this Agreement midterm.

ARTICLE 3

AGREEMENT COMPLETE

Section 3.1 Waiver of Further Bargaining. The parties acknowledge that during negotiations which resulted in this Agreement, each had the unlimited right and opportunity to make demands and proposals with respect to wages, hours, fringe benefits and working conditions, and that the understandings and agreements arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement.

Therefore, the City and the Union, for the life of this Agreement, each agree that the other shall not be obligated to bargain collectively with respect to any subject or matter without mutual consent, even though such subjects or matters may not have been within the knowledge or contemplation of either or both of the parties at the time that they negotiated and signed this Agreement. All terms and conditions of employment not covered by this Agreement shall continue to be subject to the City's direction and control.

Notwithstanding the above, the parties expressly recognize the obligation to negotiate regarding any contemplated change which will significantly affect a term or condition of employment not contained in this Agreement.

Section 3.2 Modification of Agreement. The express provisions of this Agreement may be changed midterm only by mutual agreement between the parties. Neither party has any obligation, under this Agreement or otherwise, to negotiate modifications to this Agreement midterm. Negotiated changes will be reduced to writing, dated, and signed by the parties to this Agreement.

ARTICLE 4 **RECOGNITION**

Section 4.1. The bargaining unit shall be defined as certified by the State Employment Relations Board CASE # 2020-REP-06-0050. The Employer recognizes the Union as the sole exclusive bargaining agent and representative for the purpose of collective bargaining for all full-time Firefighter/Paramedics and Captains ("Employees") employed with the Division of Fire, City of Oxford, Ohio.

Section 4.2. Excluded from the bargaining unit are: All part-time employees, and the Fire Chief and all other employees excluded in Ohio Revised Code (O.R.C.) Chapter 4117. The terms of this Agreement cover and are limited to the Employees included within the bargaining unit for which the Union is recognized.

Section 4.3 The Union has sole exclusive bargaining rights under this Agreement with respect to those mandatory subjects of bargaining as defined under O.R.C. Chapter 4117.

ARTICLE 5 **SAVINGS CLAUSE**

Section 5.1. If any provision of this Agreement, or the application of such provision should be declared invalid by any court of competent jurisdiction, or by reason of any existing or subsequently enacted State or Federal legislation, or Federal or State administrative ruling, such invalid provision shall be deemed null and void. The parties shall meet within thirty (30) days of a request by either party to determine the extent, if any, to which changes must be made to the affected provision. Only the invalid provision, and to the extent necessary the Article within which the provision is contained, shall be discussed. The remaining parts or portions of this Agreement shall remain in full force and effect.

ARTICLE 6

SUCCESSORS

Section 6.1. If the City takes over the operation of, contracts with for service, or takes part in the forming of a Joint Fire District, it is intended that this Agreement will become binding upon the City or any such other municipal corporation. All the rights and benefits of the transferred Employees guaranteed under this Agreement shall be continued for the term of this Agreement.

Section 6.2. This Agreement shall be binding upon any employee organization that, during the term of this Agreement, succeeds the Union as the recognized employee organization to represent Employees covered by this Agreement.

ARTICLE 7

LABOR MANAGEMENT

Section 7.1. In the interest of sound relations between the Union and the City, a joint committee of no more than six (6) members, half of whom shall be from the Employer and half of whom shall be from the Union, will convene quarterly at mutually agreed upon times for the purpose of discussing subjects of mutual concern. For circumstances in which neither party wishes to meet, the meeting for that particular quarter may be waived.

The City and Union agree to discuss in Labor Management Committee meetings innovative solutions to the various sources within the Oxford community that have a greater impact on the City of Oxford Fire/EMS resources, including Miami University's student population. An agreement to discuss manpower in Labor Management Committee shall not be used as precedent by either party now or in the future nor shall the agreement to discuss manpower in Labor Management be deemed a waiver of Management's Rights set forth in Ohio Revised Code 4117, including but not limited to, the right to direct, supervise, evaluate or hire employees; determine the adequacy of the workforce and effectively manage the workforce.

Section 7.2. The purpose of the joint committee is to facilitate improved labor-management relationships by providing a forum for the free discussion of mutual concerns. Additional meetings may be requested by either party to discuss urgent matters upon agreement by both parties. The meeting must be held within thirty (30) calendar days, unless extended by mutual agreement of the parties. There shall be no obligation upon the City or Union to renegotiate working conditions, pay or any other policy or practice which may be the subject of such discussions.

Section 7.3. Prior to any meeting, an agenda shall be created with both sides afforded the opportunity to add items they wish to discuss in the meeting. Within seven (7) calendar days after the meeting, Minutes of such meeting shall be mutually drafted and approved by both parties.

Section 7.4. The City agrees that prior to changing any existing or introducing any new policy, practice or procedure constituting a mandatory subject of bargaining as defined under Ohio Revised Code 4117, the parties shall meet through Labor Management and such policy, practice or procedure shall not be implemented until the dispute is resolved.

ARTICLE 8

NO STRIKE-NO LOCKOUT

Section 8.1 No Strike. The City and the Union subscribe to the principle that differences shall be resolved by peaceful and appropriate means without interruption of work. During the term of this Agreement, neither the Union nor its agents or any employee, for any reason will authorize, institute, aid, condone or engage in a slowdown, work stoppage, strike, or any other interference with the work and statutory functions or obligations of the employer.

Section 8.2 No Lockout. The Employer agrees that neither it, its officer, agents, or representatives, individually or collectively will authorize, instigate, cause, aid or condone any lockout of bargaining unit employees.

ARTICLE 9

NO DISCRIMINATION

Section 9.1. Neither the City or the Union shall discriminate against or in favor of any Employee on account of race, color, marital status, religion, creed, national origin, sex, sexual orientation, gender identity, disability, age, union activity, or membership or non-membership in the Union.

ARTICLE 10

UNION BUSINESS

Section 10.1 Union Leave.

Negotiations – One member of the Union negotiating team will be granted leave from duty, when necessary, with full pay and benefits for sessions between the City and the Union for negotiating purposes when such meetings are scheduled on the employee's duty day. The position of the employee of the Union negotiating team will be back filled with a corresponding number and certification level of employees as to not affect the division's service to the community while these meetings are being conducted. Meetings shall be ended immediately and rescheduled at a mutual time and date in the instance that an emergency has occurred and the Union negotiation team is needed to respond. The Union bargaining team may consist of up to three bargaining team members (not including the IAFF Union representative).

Administration- With the prior approval of the Fire Chief, bargaining unit members shall have the right to engage in union activity at work, so long as the activity does not interfere with the member's duties as an employee. Union officials shall have access to the fire station(s) to perform union business.

Section 10.2 Union Activity. There will be no discrimination, interference, restraint, or coercion by the employer against any Employee for their activity on behalf of, or membership in, the Union.

Section 10.3 Meeting Area. The Employer agrees to allow the Union to conduct its business meetings in City facilities, provided the appropriate facilities have not previously been reserved for other purposes, or such other time as may be mutually agreed. Union business shall not include fundraising or fundraising events held at City facilities, unless the event is a joint fundraising event

between the City and Union for the mutual benefit of the City and the Union or a joint fundraising event between the City and Union for the benefit of a third party with prior approval by the City Manager. On-Duty personnel will be allowed to attend such meetings, provided that attendance does not interfere with the efficiency and operation of the Division. Should it be determined by the Chief that the attendance of on-duty personnel interferes with the efficiency and/or operation of the Division, the Union shall suspend the practice until an acceptable remedy is sought through Labor Management or the grievance procedure.

Section 10.4 Dues Check-Off.

Section 10.4.1 Paycheck Deduction. Upon presentation of a written deduction authorization signed by an employee, the City agrees to deduct the dues, initiation fees, and assessments of members of the Union from the available wages earned by such employee each pay period and to transmit the same to the Union Treasurer each month. This authorization will terminate immediately following the City's receipt of such Employee's written notice to cancel the deduction of the Union dues from such employee's paycheck. Withdraws will occur in the bi-weekly, for 26 pay periods annually. If an employee does not have adequate funds in their check to cover the dues it will be deducted from their next paycheck.

Section 10.4.2 Union Certification. The Union will certify the amount to be deducted from each employee's Paycheck under Section 1 above and the City will be entitled to rely upon the accuracy of such certification and will not be liable to any employee by reason of any error in such certification. The Union must indemnify and save harmless the City from and against any claim or demand brought or asserted by any employee by reason of the City deducting from such employee's paycheck the amount certified by the Union under the provisions in this Article.

Section 10.4.3 Service Fee. Employees who do not join the Union may pay a voluntary service fee to the Union in place of a membership fee (Dues). This agreement shall commence thirty (30) days following the signed agreement between the member and the local. This provision shall not require any employee to become a member of the Union, nor shall the service fee exceed dues paid by members of the Union. The written authorization for such deduction of a service fee by the Employer from the payroll check of the employee and its payment shall be provided to the City by the parties entering into the agreement. Service fee payment to the union shall be as outlined in this article.

ARTICLE 11 **MANAGEMENT'S RIGHTS**

Section 11.1. The Union and Employer agree that all matters pertaining to wages, hours, or terms and other conditions of employment and the continuation, modification or deletion of an existing provision of this agreement are subject to collective bargaining between the Employer and Union as outlined in ORC 4117.08, except where otherwise herein specified.

Unless otherwise memorialized in this collective bargaining agreement by and between the Union and Employer, The Union recognizes that the City expressly maintains all management rights set forth in Ohio Revised Code Section 4117.08(C)(1)-(9). With respect to those management rights, the City shall have the clear right to make decisions in all areas, on a unilateral basis and such decisions, except as provided herein, shall not be subject to the grievance procedure.

The exercise by the City of, or its waiver of, or its failure to exercise, its full rights of management on any matter or occasion shall not be precedent or binding on the City, nor the subject or basis of any grievance.

Section 11.2. The Employer will have the right to, in connection with its function of maintaining discipline and directing the workforce, publish and amend Rules of Conduct and department policy. The Union will receive notification of a modification to work rules that affect members of the Union or have the potential to affect members of the union at least seven (7) days prior their effective date, except in emergency situations where delay may affect the health and safety of the members or the health and safety of the general public.

ARTICLE 12

GRIEVANCE PROCEDURE

Section 12.1 Purpose. The term “grievance” shall mean an allegation by a bargaining unit employee that there has been a violation of this Agreement, department policy or an allegation that discipline has not been for just cause.

Section 12.2 “Days” Defined. The term “days” in Article 12 and 13 shall refer to actual calendar days, excluding Saturday, Sunday, and City recognized holidays.

Section 12.3 General. Each grievance must state the Article of the Agreement where the violation has occurred and the remedy requested to settle the grievance. Grievances will be settled at the earliest possible step of the procedure. The employee must proceed through all steps of the grievance procedure in proper order and within the prescribed time limits, except as otherwise noted. Time limits may be extended upon mutual agreement of the parties. Any step in the grievance procedure outlined below may be skipped on any grievance by mutual consent of the parties.

Section 12.4 Grievance Procedure. Both parties agree that mutual benefit is derived from the City considering and responding to all grievances in a timely manner as prescribed by the time limits herein. The parties agree to cooperate in attempting to resolve grievance issues. However, should the Employer, at any step, fail to render a response within the time limits set in this article to the grievant and union, the grievance shall be deemed denied and may be advanced immediately to the next step by the grievant.

Should the grievant or union fail to inform the employer of their wish to move the grievance to the next step, the grievance shall be determined to be dropped by the grievant and or union.

Meetings shall be scheduled at a time that is convenient for the employer, grievant and union representative.

Section 12.5 Process and Cadence.

Step 1 – Immediate Supervisor. Any employee or IAFF representative having a grievance shall present their or her grievance in writing to their immediate supervisor. In order for the grievance to be recognized, it must be presented within fifteen (15) calendar days from the date of the incident or

when the employee knew or should have known of the incident giving rise to the grievance. Within fifteen (15) calendar days from the date the employee first presented their or her complaint, the supervisor will attempt to resolve the matter or provide a written response to the grievance.

Step 2 – Division Head. If the grievance is not resolved in Step 1, the employee may pursue the matter by presenting the grievance to the Fire Chief within seven (7) calendar days of the date of the reply was received in Step 1. The Chief will meet with the grievant and their/her representative(s) and otherwise attempt to resolve the matter within fifteen (15) calendar days of receipt of the grievance. The Chief, after review and investigation of all matters of fact relative to the grievance, shall issue a decision on the grievance from within fifteen (15) calendar days following the meeting.

Step 3 – City Manager. Where the grievant is not satisfied with the Step 2 response, the aggrieved may submit the grievance to the City Manager within seven (7) calendar days of the date of receipt of the Step 2 answer. The City Manager will review the grievance and all responses within fifteen (15) calendar days following the date he received the grievance. The City Manager shall Conduct a meeting with all parties involved in attendance and available for questioning within fifteen (15) calendar days following the day he received the grievance. The City Manager or designee will inform the grievant of his or her decision within fifteen (15) calendar days of the meeting.

Arbitration. When the grievant is unsatisfied, the matter may be taken to arbitration by informing the City within fifteen (15) calendar days of the decision of the City Manager.

The State Employment Relations Board (SERB) under its rules will appoint the arbitrator, unless the Union and the Employer mutually agree on an arbitrator. Either the Union or the Employer may request the State Employment Relations Board to make the appointment.

The arbitrator must have no authority to amend, modify, nullify, ignore, add to or subtract from the specific provisions of this agreement. They must only consider and make a decision with respect to the specific issue submitted to them by the parties. They must have no authority to make a decision on any other issue not so submitted. To the extent that the arbitrator's decision is in accordance with the provisions of this Section, it will be final and binding on all parties.

Where the arbitrator decides the issue in favor of one party, the losing party will pay the cost of the arbitrator. Where the arbitrator splits the decision in any way the parties will split the cost of the arbitrator. Each party will bear their non-arbitrator cost.

Section 12.6 Mediation. The parties, prior to arbitration, may elect to attempt to settle the grievance through mediation. A mediator may be selected by mutual agreement from SERB or Federal Mediation and Conciliation Service (FMCS). During the time of mediation, all timelines shall pause.

ARTICLE 13

DISCIPLINE/DISCHARGE

Section 13.1 General. The term "days" in Article 12 and 13 shall refer to actual calendar days, excluding Saturday, Sunday, and City recognized holidays.

The Employer may take disciplinary action, including discharge, against any employee in the bargaining unit only for just cause, except for a probationary employee who has not been appointed as a permanent employee. The Employee shall have the right to be accompanied and represented by the Union and/or legal counsel at any hearing held to investigate charges prior to the imposition of discipline or discharge. Prior to any hearing for this purpose, the Employee shall be notified in writing of the charges, the right to representation by the Union and/or legal counsel, and the time and place of the hearing.

Any employee may be disciplined for the following reasons, including but not limited to, incompetency, inefficiency, dishonesty, drinking or being under the influence of intoxicants, narcotics, controlled substances or hallucinogens during duty hours, fighting on duty, habitual tardiness, immoral conduct, insubordination, neglect of duty, conviction of criminal charges, misfeasance, malfeasance, nonfeasance, discourteous treatment of the public, failure to pay just debts, violation of the Administrative Regulations of the City, violation of the Division of Fire Rules, Regulations, general or special orders, and any other failure of good behavior, or an accumulation of infractions. Possible forms of disciplinary action are as follows:

1. Oral Reprimand
2. Written Reprimand
3. Suspension with pay
4. Suspension without pay
5. Reduction of pay
6. Demotion to lower classification or rank
7. Discharge

An employee who is placed on an administrative leave with pay pending an investigation and final determination of the findings is not discipline.

Section 13.2 Procedure. When appropriate and in the discretion of the Employer, discipline shall be accomplished in a constructive, progressive manner, so as to rehabilitate and correct an offender. However, the disciplinary action taken may not necessarily be progressive in nature depending upon the severity of conduct and whether the violation is a repeat offense.

Whenever the Employer determines that an employee may be disciplined for just cause that could result in suspension, reduction, or termination, a pre-disciplinary hearing will be scheduled to give the employee an opportunity to offer explanation of the alleged misconduct. Prior to the hearing, the employee shall be given written explanation of the charges and all evidence supporting such charges.

A pre-disciplinary hearing, if any, shall be completed within fifteen (15) calendar days from the presentation to the employee of the written explanation of charges. A copy of the Hearing Officers decision will be provided to the employee within fifteen (15) calendar days following the Pre-disciplinary Hearing. Any disciplinary action to be administered must be issued within forty-five (45) calendar days of the receipt of the hearing officer's decision. Time frames may be extended by mutual agreement.

Pre-disciplinary hearings will be conducted by the City Manager and/or Fire Chief. The employee may choose to:

1. Appear at the hearing to present oral or written statements in their defense
2. Appear at the hearing and have an employee or non-employee representative of the IAFF present oral or written statements in their defense
3. Elect in writing to waive the opportunity to have a pre-disciplinary hearing

At the pre-disciplinary hearing, the hearing officer(s) will ask the employee or their representatives to respond to the allegations of misconduct which were outlined to the employee. At the hearing, the employee may present any testimony, witnesses, or documents which he feels may be germane to the charges. The employee shall provide a list of witnesses, and the name and occupation of their representative, if any, to the Employer as far in advance as possible, but not later than eight (8) hours prior to the hearing. It is the employee's responsibility to notify their witnesses that he desires their attendance at the hearing.

The employee will be permitted to confront and cross-examine witnesses, if called by the Employer. The Employer will decide what discipline, if any, is appropriate.

The hearing shall be scheduled at a time that is convenient for the City, Employee and Union representative.

Section 13.3 Appeal. Disciplinary action may be appealed through the grievance and arbitration procedure. Appealable disciplinary actions must be filed at the appropriate level of the grievance procedure within fifteen (15) calendar days from receipt of the notice of discipline by the employee.

Section 13.4 Representation. The bargaining unit employee under investigation shall be entitled to the presence of an employee and/or non-employee IAFF representative at any questioning of the member, unless the member consents in writing to being questioned outside the presence of the representative. Meeting shall be postponed or rescheduled to a time at a union representative may attend.

Section 13.5 Professional Manner. The City agrees that all disciplinary procedures shall be carried out in a professional manner.

ARTICLE 14 **LIMITED DUTY**

Section 14.1 General. An Employee whose physical/medical condition prevents him or her from performing his or her normal work assignments may be re-assigned to alternative or light duty by the Fire Chief. The decision of the Fire Chief shall not be grievable.

A light duty assignment is strictly temporary and does not serve to permanently change or modify the essential functions of the Employee's regular assignment. The availability of limited duty shall be at the discretion of the chief.

Alternative duty shall be limited to that which is medically appropriate and which contributes in a meaningful and identifiable way to the function and mission of the Division.

Once an Employee has been medically certified as fit for duty, that Employee will be returned to the position and duties to which the Employee was assigned prior to the limited or light duty assignment.

An Employee's pay while on light duty shall not be less than that which they would have received had they continued to perform the regular and ordinary duties assigned to them prior to the injury or illness. While on limited duty, an Employee may become temporarily assigned to a forty (40) hour week, subject to availability and the Employee's own medical restrictions as determined by the Employee's physician.

ARTICLE 15 **SENIORITY**

Section 15.1 General. "Seniority" shall be computed on the basis of uninterrupted length of continuous service with the City. A termination of employment lasting less than thirty-one (31) days shall not constitute a break in continuous service. Once continuous service is broken, unless the employee is reinstated, the employee loses all previously accumulated seniority. Seniority shall govern the dispensing of all privileges provided by and listed as governed by seniority in this Agreement.

Section 15.2 Leave of Absence. An approved leave of absence of six (6) months or less does not constitute a break in continuous service, provided the employee follows the proper procedure for such leave and returns to active service immediately following the expiration of the approved leave.

Section 15.3 Probation. Employees shall have no seniority during their probationary period, but shall be granted seniority upon successful completion of the probationary period, calculated from the date of hire with the City.

Section 15.4 Loss of Seniority. An Employee's seniority shall be lost and employment terminated when he or she:

- (a) terminates voluntarily;
- (b) is discharged for cause;
- (c) exceeds an official leave of absence;
- (d) is laid off for a period of more than twenty-four (24) months;
- (e) failure to return to work within thirty (30) calendar days without just cause, following recall subsequent to a lay-off;
- (f) failure to report to work for three (3) days without just cause;
- (g) re-enlistment in the armed services after resignation from the City of Oxford.

ARTICLE 16 **LAYOFFS & RECALL**

Section 16.1 Layoffs. The City can layoff Employees for any reason permitted in Chapter 124 of the Ohio Revised Code. In the event the Employer determines that a layoff of Oxford Fire Division employees is necessary, the following procedures shall be followed:

- A. The Employer may send notification to the Union indicating the need for the reduction of personnel. At the City Manager's discretion, the Parties may meet within 72 hours to discuss the effects of a lay-off and to consider alternative proposals or plans. Should the Employer determine that need for a reduction in personnel still exists following the discussion with the Union, the Employer may send notice to the employees giving a thirty (30) day notification of the impending lay-off. If a 30-day notice is not possible or practical under the circumstances, the City may notify Employees of impending lay-off as soon as practicable. The City's failure to provide notice in accordance with this Section shall not be grievable. The City's decision to not meet with the Union to discuss the effects of a lay-off and consider alternative options shall not be grievable.
- B. Oxford Fire Division employees will be laid off in the inverse order of their seniority (i.e., least senior Employees being laid off first). Any lay-off shall proceed in the following order:
 - 1. Seasonal, temporary, volunteer, and casual employees;
 - 2. All part-time employees;
 - 3. Full-time employees.

Section 16.2 Recall. In the event of a layoff, the Employer shall maintain an active "recall list" for a period of twenty-four (24) months, in accordance with O.R.C. 124.37. Whenever a vacancy occurs in a position for which laid off Employees are qualified, such Employees shall be recalled in accordance with their seniority in the reverse order that they were laid off, in accordance with the following provisions:

- A. Notice of recall shall be sent to the employees by certified or registered mail. The Employer shall be deemed to have fulfilled its obligations by mailing the recall notice by certified mail, return receipt requested, to the last mailing address provided by the employee.
- B. The recalled employee shall have five (5) calendar days following the date of the receipt of the recall notice to notify the Employer of their intention to return to work and shall return to work on the date and time specified in the notice unless a different date and/or time is agreed to by the Employer.
- C. No new employees shall be hired in the Fire Division until all full-time employees who are laid off have been given the opportunity to return to work.
- D. **Layoff/Termination.** An employee who is on lay-off for a period of twenty-four (24) months is automatically terminated and loses all seniority.

ARTICLE 17

RESIDENCY RULE

Section 17.1. No Employee will be required to live in the City of Oxford.

ARTICLE 18

DRUGS AND DRUG TESTING

Section 18.1. Alcoholism, drug addiction, or drug abuse (the abuse of a legal drug) are recognized by the parties as interfering with the Division's services and as posing a danger to the public's health and safety. The Employer has the right to insist on an alcohol and drug-free environment. The City has a legal and financial responsibility to provide timely, cost effective, quality service to its citizens and the community. Alcohol and/or drugs in an Employee's system impair the Employee's ability to perform services in a safe and efficient manner.

For the purposes of this Article, a positive result in an alcohol screening will be a blood alcohol content (BAC) test of 0.04 or greater. A positive result in a drug screen will be a urine test in which the illegal use of drugs is detected.

Section 18.2 - Terms and Definitions

1. Alcohol

The intoxicating agent in beverage alcohol, ethyl alcohol, or other low molecular weight alcohol including methyl and isopropyl alcohol.

2. Alcoholic Concentration (or Content)

The alcohol in a volume of breath expressed in terms of grams of alcohol per 210 liters of breath as indicated by an evidential breath test

3. Drugs

Refers to marijuana, cocaine, opiates, amphetamines, and phencyclidine, as well as other illegal controlled substances

4. Substance Abuse Professional

A licensed physician, or a licensed or certified psychologist, social worker, employee assistance professional, or certified addiction counselor with knowledge of and clinical experience in the diagnosis and treatment of alcohol and controlled substance-related disorders

Section 18.3 – Required Tests

Pre-Employment. Applicants are required to pass a screening for illegal drugs as part of the pre-employment medical examination. City employment will be contingent upon the successful passage of this screening. Applicants who test positive for the illegal use of drugs will be disqualified from City employment.

Reasonable Suspicion (Just Cause). The illegal use of drugs or alcohol while on the job is strictly prohibited. The City Manager or Fire Chief shall order that an Employee submit to a drug and/or alcohol analysis when there is reasonable suspicion of substance abuse. Reasonable suspicion

means that specific facts or inferences exist which lead to a belief that an individual is under the influence of drugs or alcohol.

A supervisor or division head who has reasonable suspicion of an employee engaged in substance abuse will immediately relieve the Employee from their duties. Under no circumstances will the suspected employee be permitted to operate a vehicle, machinery or equipment. A division head or supervisor will personally transport the Employee to the testing facility.

If a drug screen is performed, the employee will be permitted to use accrued and available sick, vacation, or personal leave pending the result. If the result is negative the leave will be reimbursed.

All Employees are responsible for the consistent enforcement of this policy. Any Employee who knowingly permits a violation of this policy will be subject to disciplinary action.

Post-Accident Testing. As soon as is practicable following an on-duty accident involving a commercial motor vehicle where a loss of life is involved and/or the driver receives a moving traffic citation, the driver will be tested for the presence of drugs and alcohol which violate the prohibitions listed above. Any driver who is subject to post-accident testing shall remain readily available for such testing or may be deemed as refusing such testing.

Section 18.4– Consequences of a Positive Alcohol/Drug Test Result

Permanent Full-Time Employees:

A permanent full-time Employee who fails any of the drug or alcohol tests outlined in this policy will be subject to the following tests and provisions:

The Employee will be referred to the City's Employee Assistance Program; an evaluation will be conducted and, where necessary, a rehabilitation program will be prescribed. The Employee will be permitted to use accrued and available sick, vacation and/or personal leave pending completion of the evaluation.

The Employee will meet with the City Manager and Human Resources Director, who will consider the recommendation of the substance abuse professional and determine when the Employee may return to work. If, in the opinion of the substance abuse professional, the Employee is not capable of working, the Employee will be permitted to use accrued and available sick, vacation, or personal leave until such time as the substance abuse professional may recommend a return to work.

Before an Employee may return to any duties requiring the performance of safety sensitive functions, the Employee shall undergo a return-to-duty drug test with a negative result and/or return-to-duty alcohol test with an alcohol concentration of less than 0.02. The return-to-duty test shall be administered within a reasonable time period as determined by the City Manager and Human Resources Director.

Following a determination that an Employee is in need of assistance in resolving problems associated with drug/alcohol abuse, the Employee is subject to unannounced follow-up alcohol or drug testing after return to duty. The number and frequency of these tests shall be directed by

a substance abuse professional and shall consist of at least 6 tests in 12 months following the employee's return to duty. Testing shall not exceed 60 months from the Employee's return to duty. The substance abuse professional may terminate follow-up testing after the first six tests have been administered if the substance abuse professional determines that testing is no longer necessary.

A positive test result on any follow-up test, or on any subsequently administered drug or alcohol screening will result in the employee's termination.

Section 18.5- Miscellaneous Provisions.

If an Employee undergoes a test which indicates an alcohol concentration of greater than 0.02 but less than 0.04, that Employee will not be permitted to perform "safety sensitive functions" for twenty four (24) hours, or until a test result of less than 0.02, whichever comes first.

Refusal to submit to any of the drug/alcohol tests outlined in this policy will result in the employee's immediate termination.

Failure to complete a rehabilitation program prescribed by the substance abuse professional under the guidelines established in this Section will result in the Employee's immediate termination.

An Employee shall not report for, or remain on duty for a safety-sensitive functions while being in possession or using any drugs, except when the use is pursuant to the instructions of a physician who has advised the Employee that the drug does not adversely affect his/her ability to safely operate a motor vehicle or perform safety-sensitive functions. An Employee may be required to inform his/her supervisor of any therapeutic drug use if there is a chance the drug may affect their job performance. Light duty may be considered while the Employee is using the prescribed drug. A supervisor having knowledge of an Employee's use of a drug that interferes with job performance shall not permit the Employee to perform or continue performing a safety-sensitive function or driving a vehicle.

All results and actions taken under or pursuant to this Article shall be kept confidential in accordance with state and federal law.

The Employer shall pay for drug and alcohol screening and confirmatory tests.

ARTICLE 19 **PROBATION AND PROMOTION**

Section 19.1 Probation: New Employee. New employees, which shall include an Employee newly hired as a full-time firefighter from the part-time firefighter ranks, are on probation for one (1) year following the commencement of their employment. Probationary employees may be disciplined or discharged at the discretion of the Employer.

Section 19.2 Probation: Promotion. All promotions within the Division shall be subject to a six (6) month probationary period.

ARTICLE 20

OUTSIDE EMPLOYMENT

Section 20.1. Bargaining unit employees shall be permitted to outside employment as long as it does not interfere with the Fire Division Operations and the Employee is able to meet the performance standards of their job with the City.

The outside job shall not conflict with the Employee's duties as a member of the Fire Division. Employee shall consider the impact that outside employment may have on their health and physical endurance. All Employees will be judged by the same performance standards and will be subject to the Employer's scheduling demands, regardless of any existing outside work requirements.

If it is determined that an Employee's outside work interferes with his or her performance or the ability to meet employment requirements of the Fire Division, the Employee may be required to terminate the outside employment.

All Employees upon request of the City shall disclose to the City of any outside employment.

Outside employment that constitutes a conflict of interest, as determined by the Fire Chief and/or City Manager, is prohibited.

ARTICLE 21

FAMILY MEDICAL LEAVE ACT AND AMERICANS WITH DISABILITIES ACT

Section 21.1. Nothing in this Agreement shall be used or construed to prevent or inhibit the City from complying with the provisions of the Americans with Disabilities Act (ADA) or the Family Medical Leave Act (FMLA).

ARTICLE 22

EMERGENCY WAIVER

Section 22.1. In the event an emergency is proclaimed by the City Manager, the Chief of the Division may, after the declaration of an emergency, make such work assignments within the recognizable scope of Fire Division skills, as he deems necessary, without regard to Employee classifications, overtime limitations, or seniority.

Section 22.2. In cases of emergency declared by the City Manager, the Employer may temporarily suspend time limits for the processing of grievances. Upon the termination of the emergency, should a valid grievance exist, it shall be processed in accordance with the provision outlined in the grievance procedure of this Agreement and shall proceed from the point in the grievance procedure to which the grievance had properly progressed prior to the emergency declaration.

ARTICLE 23

OVERTIME PROGRAM

Section 23.1. Overtime, for the purpose of this Agreement, is defined as being any time worked outside the Employee's normally scheduled hours of work. The City shall pay overtime in accordance with the terms of the Agreement and existing rules and regulations applicable to the Fair Labor Standards Act (FLSA).

Section 23.2. The Oxford Fire Division manages two types of Overtime: Scheduled and Emergency. Except as otherwise modified by terms of this Agreement, the responsibility for the determination of the need for overtime and the number of hours to be worked shall be vested in the Fire Chief. The working of overtime is mandatory. When possible, the City will first attempt to fill overtime needs on a volunteer basis. However, if the City is unable to fill a need for overtime on a volunteer basis, the City will have the right to order an Employee to work the required overtime.

Overtime will be distributed in a manner in which most fairly allows for the equal distribution of overtime hours. The employer and union shall develop such a system by mutual agreement through the labor management committee, outlined in Article 7 of this agreement. Once finalized, the overtime program shall only be changed by mutual agreement of both parties. Such agreement shall be binding on each party and subject to the grievance process.

The Fire Chief shall have the sole authority to determine whether there is a need for overtime. Overtime articles contained within this Agreement shall apply as it relates to the scheduling of overtime and overtime compensation.

An up-to-date overtime list shall be posted in a conspicuous location showing cumulative overtime hours. For each call in, employees called for scheduled or emergency overtime shall be compensated for not less than three (3) hours, with the exception of overtime which occurs directly connected to the start or end time of a regularly scheduled shift, in which case overtime will be paid for actual hours worked.

In cases where non-overtime coverage for a shift is found subsequent to overtime being assigned to an employee, such overtime may be cancelled by the scheduling officer only upon both the consent of the employee, and the approval of the fire chief.

Section 23.3 Scheduled Overtime. Scheduled overtime is the foreseen need for additional staffing when ordinary leaves cause personnel shortages. Open shifts shall be filled no later than six (6) days prior to the start of the overtime shift.

Section 23.4 Emergency Overtime. Emergency Overtime is any unforeseen need for immediate staffing as declared by the Chief or their designee.

Emergency Overtime positions will be staffed in a manner that will fill the position(s) available as quickly as possible.

Emergency Overtime or recall may be used to meet staffing requirements.

If the Employer cannot maintain an adequate staff of certified personnel open positions shall be filled with overtime.

Section 23.5 Overtime Pay. An employee who performs their ordinary job duties, or additional tasks or assignments on behalf of or to the benefit of the employer outside of their regularly scheduled work hours will be compensated at their overtime rate. Any overtime accrued must have the prior approval of the Fire Chief or the Employee to which the Fire Chief has delegated scheduling authority.

Overtime is earned at a rate of time-and-a-half calculated from the Employee's regular pay rate except as otherwise provided in this Agreement.

Overtime will accrue in fifteen (15) minute increments.

Section 23.6 Emergency Recall. Recall for the purposes of this Article will be considered Emergency Overtime. Emergency recall means notifying an employee that he/she is to report back to work at a time disconnected from their shift and for the purposes of meeting unforeseen staffing needs generated by an emergency as declared by the Chief or their designee. A recall will be assumed with emergencies such as, but not limited to, Critical Care EMS, Structure Fires, Staffing recalls, and Weather emergencies. Employees that report back to work for emergency recall, shall be compensated for a minimum of three (3) hours of overtime.

Section 23.7 Pyramiding of Rates. In no event shall the overtime or premium pay established within this Agreement be pyramided. Thus, if two or more overtime or premium pay provisions are applicable to the same hours of work, only the provision yielding the largest pay amount shall satisfy the requirements of all other pay provisions.

ARTICLE 24

OFFICER IN CHARGE (OIC)

Section 24.1. When a firefighter acts in an officer's position and is expected to bear all responsibilities associated with that position, he/she will be compensated at ten percent (10%) above his or her current rate of pay. The Fire Chief and/or his or her designee will maintain a list of Employees eligible for acting in an officer's position.

ARTICLE 25

HOLIDAY PAY

Section 25.1 Recognized Holidays.

New Year's Day	Labor Day
Martin Luther King Jr. Day	Thanksgiving Day
President's Day	Day After Thanksgiving
Memorial Day	Christmas Eve
Independence Day	Christmas Day

Holiday pay shall count as time worked in computing overtime pay, except when the holiday occurs on a non-work day. In the case of forty (40) hour employees, a holiday which is observed on a regular workday occurring during an employee's vacation will not be counted as a day of vacation.

Section 25.2 Non-Shifted Employees. Fire Division employees who work on the 40-hour shift schedule will have the recognized holidays off as scheduled by the City. Employees will be compensated at their regular hourly rate for eight (8) hours on the recognized holidays.

Section 25.3 Shifted Employees. Fire Division employees who work on the 24/48 hour shift schedule shall be granted eighty (80) hours of holiday time annually, paid at the appropriate forty (40) hour rate. Employees will have holiday pay be paid as a lump sum and will be included in an extra paycheck with the first payroll in December. Holiday pay is paid on the basis of eight (8) regular hours per holiday for ten (10) City holidays each year.

Section 25.4 Premium Holidays. Employees who work New Year's Day, Christmas Eve and/or Christmas shall receive additional compensation at one-half of the members rate of pay for those members working between 7 AM the morning of the holiday and 7 AM the following day. This compensation is in addition to the regular holiday pay or premium pay if applicable.

ARTICLE 26

COMPENSATION UPON RESIGNATION, DISMISSAL, RETIREMENT OR LAYOFF

Section 26.1 Separation. Any employee who resigns, retires, is dismissed or laid off, and is eligible under state law will be compensated accordingly for all their accumulated overtime, and holiday time, for which the employee has not been paid. Vacation time (prorated for the current year) will also be compensated. All compensation will be made at the employee's current rate of pay.

Section 26.2 Death. In the event that any employee dies on-duty or off-duty, the employee's beneficiary will be entitled to the above compensation in Section 26.1.

ARTICLE 27

BENEFITS

Section 27.1 Insurance. The Employer agrees to maintain for bargaining unit members and their dependents the same Health Care Insurance Plan and Life Insurance Plan offered to all other City of Oxford employees. The City is committed to providing the best coverage at the lowest premium rate possible.

A Life Insurance Policy shall be provided to each employee for no less than one and a half (1.5) of the employee's annual wage per employee. The City may offer employees the option of purchasing additional life insurance through the City's group life insurance provider. Employees will be permitted to participate in any additional insurance plans which will be deducted from their wages so long as there is more than one career/non-career employee participating (Ex. Aflac).

The bargaining unit shall have one (1) member, of the local president's choice, participate in the Employee Advisory Committee.

Section 27.2 Deferred Compensation. The Employer shall make available during the term of this Agreement the opportunity for all Employees to participate through payroll deduction in a "deferred compensation plan" (Section 401K, Section 457, or other federally-approved deferred savings plan).

In addition, two (2) plans available for participation are the IAFF Financial Corporation and the OAPFF 457 Plan. Nothing in this Article shall prevent the Employer from offering additional plans for the Employees' investment option.

Any fees and/or other charges associated with the administration of the plan(s) will be the responsibility of the participating Employee. The Parties agree that there will be no fee and/or charge from the Employer for the deduction and transfer of Employee funds to the participating plan.

ARTICLE 28

WORK RELATED DISABILITY/INJURY LEAVE

Section 28.1 Work Related Disability Leave. An Employee who is disabled to the extent that he/she cannot perform regular duties as a result of injury sustained in an identifiable incident while in the course of public employment with the City, not through his/her own negligence, shall continue to receive for a period not to exceed one calendar year from that date an amount of compensation equivalent to his/her full salary less any and all funds or monies received from public or private agencies by way of pension, compensation, or indemnity for such disability.

The Employee, at the request of the City, shall make application for "temporary total" disability compensation under the Workers' Compensation Laws of Ohio, provided that the disability is of a type or nature which will prevent the Employee from returning to full duties.

In no case will the City pay a leave allowance for any period of time in excess of the "temporary total" disability time as determined and awarded by the Ohio Bureau of Workers' Compensation. After the temporary total disability ends, should the Employee remain unable to return to regular duties, the Worker's Compensation pay shall be changed to sick leave and deducted from the Employee's available accrued sick leave.

Upon having the Employee's pay changed to sick leave upon termination of temporary total disability, the Employee shall also be required to apply for all available benefits, funds and money that may accrue to him/her and be payable from the Police and Firemen's Disability and Pension Fund.

Upon request for disability and upon termination of temporary total disability, the City Manager is entitled to have the Employee be examined by a physician of the City's choice to determine the extent of the disability and may require subsequent examinations during the period of disability.

Section 28.2 Reinstatement. An Employee absent from work because of any service connected occupational illness or injury as determined by the Ohio Industrial Commission shall be entitled to reinstatement at the same rate of pay received prior to the date of such illness or injury plus any contractual increases upon approval of his/her application to return to work.

ARTICLE 29 **SICK LEAVE**

Section 29.1 Accrual. Each full-time employee shall accrue thirteen (13) hours of sick leave with pay per month. There shall be no maximum accrual. Sick leave is considered "Hours Worked".

Section 29.2 Standard Use. An employee may use sick leave for absence due to the employee's illness, injury, doctor's or dentist's appointments, or exposure to a contagious disease which could be communicated to other employees. If abuse is suspected or if an Employee misses two (2) full work days with sick leave, the Employee may be required to submit medical documentation or other verification to justify the use of sick time. Abuse of sick leave will lead to disciplinary action.

Section 29.3 Use for Care of Family. An employee may use sick leave to care for an ill or injured member of the immediate family, as defined in Section 29.4. The employer may reasonably request documentation from an attending physician that the employee's presence is necessary.

Section 29.4 Definition of Immediate Family. For the purpose of this Article, the "immediate family" is defined as only: spouse, child (biological, adopted, foster or stepchild), parent, stepparent, mother-in-law, father-in-law, brother, sister, brother-in-law, sister-in-law, son-in-law, daughter-in-law, grandparent, spouse's grandparent or grandchild, dependents, whether or not related by blood or legal relationship, are also included within the definition of immediate family member.

Section 29.5 Notification. Each employee shall notify or cause their supervisor to be notified of their absence not later than thirty (30) minutes prior to the regular starting time of the working day.

Section 29.6 Sick Leave Incentive. Employees shall receive a bonus of three hundred ten dollars (\$310.00) per calendar quarter if the employee uses no sick leave during that quarter. Use of any

hours of sick leave will result in the Employee receiving no payment for that quarter. An employee who uses no sick leave for a calendar year shall receive an additional bonus of three hundred sixty dollars (\$360.00). Any payment shall reflect applicable federal, state and local withholdings.

Section 29.7 Donation. Employees may donate sick time to individuals in need of excess time due to unforeseen circumstances, an unexpected illness or pregnancy. Each request shall be reviewed on a case-by-case basis by the City Manager and be approved at the sole discretion of the City Manager. Should an employee choose to donate sick time to another individual, they shall not be eligible for the sick leave bonus.

ARTICLE 30

FUNERAL/BEREAVEMENT LEAVE

Section 30.1. If a death occurs among members of an employee's immediate family as defined in Article 29.4 of this Agreement, with the addition of aunts, uncles and non-traditional family members, the non-shifted employee shall be granted three (3) days paid funeral leave/bereavement leave without loss of pay, benefits, days off, holidays or vacation time. 24/48 shift employees will be granted two (2) twenty-four (24) shifts for funeral/bereavement leave without loss of pay, benefits, days off, holidays or vacation time. Funeral/Bereavement leave is considered "Hours Worked". Employees using funeral leave may be required to submit either an obituary of the decedent or provide other documentation.

ARTICLE 31

COURT TIME

Section 31.1 Criminal or Administrative Matters. All employees who are required to appear on behalf of the employer in court for criminal proceedings or administrative hearings, when off duty, shall be credited with the actual time that they are required to be in court at a one-and-one-half rate. In no event will an employee receive less than three (3) hours of pay at a one and one-half time rate of pay. Court time will be considered "Hours Worked".

Section 31.2 Civil Matters. Employees will not ordinarily be paid for court appearances in civil matters. However, when the appearance of an employee in a civil action is at the request of the City or on behalf of the City in a matter in which the City is directly interested, or the testimony arises out of and is directly related to the performance of the employee's official duties, the employee, if on duty, shall be released from duty without loss of pay. If the employee, in such a case, is not on duty, he shall be paid for the time he is actually required to be at court at a rate of one-and-one-half rate, provided such time is in excess of their regularly scheduled hours, but in no event is less than three (3) hours' time to be paid at one and one-half times the regular rate of pay.

ARTICLE 32

JURY DUTY

Section 32.1. Employees shall promptly notify their division of their being served with a notice to perform jury duty or to appear as a witness at a hearing or trial. An employee will be paid their or her regular salary for performing jury duty or appearing as a witness if work related. Jury Duty is

considered "Hours Worked". The amount of compensation received as a witness or the amount received as compensation for jury duty must be provided to the City unless such duty is performed outside scheduled working hours for the Employee. An Employee who reports for such service and is excused shall contact his or her supervisor or the Fire Chief immediately and report for work if requested.

ARTICLE 33 **HOURS OF WORK**

Section 33.1 Schedule. Employees are either assigned a 24-hour shift followed by 48-hours off or they are assigned a 40-hour shift and will work either Monday – Thursday or Monday-Friday. Employee's shifts cannot be changed without just cause and the employee will be given thirty (30) days advanced notice. The City may need to adjust an Employee's work schedule from unit-day to unit-day and/or vary the starting and ending time of the tours-of-duty to meet the operational needs of the City. In such a situation, the City shall post changes at least seven (7) days in advance and will make every effort to promptly notify Employee(s) of changes in the posted schedule.

Section 33.2 Hours. Shifts shall start at 7 AM and run for twenty-four (24) continuous hours followed by forty-eight (48) consecutive hours off. In accordance with the FLSA, the parties agree that the work period will be twenty-eight (28) days. Over the course of three (3) work periods, an employee shall be scheduled an average of two hundred twelve (212) hours per work period, or the equivalent of a fifty-three (53) hour work week. This shall be accomplished by employees given the appropriate number of Earned Days Off (EDOs) per year. Employees may choose their EDO's based on division seniority. There shall be no restricted or dates blacked out in which employees are not permitted to take an EDO with the exception of Miami University student move-in dates in August and move-out dates in May, which may only be granted as EDO with the Fire Chief's approval at his or her sole discretion. Any hours worked in excess of two hundred twelve (212) hours or the maximum allowable by the United States Department of Labor in a single work period constitutes overtime.

The work period for purposes of calculating overtime for forty (40) hour employees shall be fourteen (14) days. Such Employees shall be compensated overtime for all authorized hours worked in excess of 106 hours in any one work period or in the excess of twelve (12) hours in any shift.

Section 33.3 Maximum Hours. Employees shall not be required to work in excess of forty-eight (48) consecutive hours without a twelve (12) hour off-duty period, nor shall they be permitted to do so without approval of the Fire Chief at his or her sole discretion. This does not include any employee deployed on a special detail or task force through a county, state or federal team. Should an emergency event be proclaimed by the City Manager, this Section is subject to the Emergency Waiver set forth in Article 22, which shall allow the Chief to require Employees to work in excess of forty-eight (48) consecutive hours at the Chief's discretion.

ARTICLE 34 **LEAVES OF ABSENCE**

Section 34.1 Leave of Absence. A leave of absence without pay for a period of up to one (1) year may be granted upon approval of the City Manager. Return of the Employee within the approved time period entitle the employee to reinstatement in the position held prior to the granting of the leave. Failure to return to work upon the termination of a leave of absence shall result in termination of employment. The City may require that any Employee requesting leave under the provisions of the Family and Medical Leave Act of 1993 utilize accrued paid time off before any non-paid time off shall be utilized.

No benefits shall accrue during the period of the leave of absence, unless any such time is mutually designated Family Medical Leave time. During such 12 week period the City will provide health insurance coverage as required by law.

Section 34.2 Family and Medical Leave. Subject to certain conditions, Employees who have at least 12 months of service and have worked at least 1250 hours during the prior 12-month period are entitled to a maximum of 12 weeks leave during any rolling 12-month period, for one or more of the following reasons:

- (1) Because of the birth, adoption or foster case placement of a child of the Employee (leave must be taken within 12 months of the child's date of birth or in the case of adoption or foster care the first 12 months of custody);
- (2) To care for a spouse, child or parent who has a serious health condition;
- (3) Because of a serious health condition that makes the Employee unable to perform the Employee's job.

"Child" includes biological, adopted, foster or stepchild as well as legal ward who is under 18 or who is 18 or older but incapable of self-care due to a physical or mental disability.

In cases where both spouses are employed by the City, their combined leave may not exceed the 12-week limit where the leave is taken because of the birth or placement of a child or to care for a sick parent. In all cases, accrued sick leave, vacation time and personal time will be counted towards the 12-week limit. Where the leave is the result of a serious health condition of the employee or the employee's spouse, child or parent, the employee's accrued sick leave, vacation and personal time will also be counted toward the 12-week limit. Whenever an employee's leave of absence exceeds the amount of applicable accrued leave time, the remainder of the leave is without pay. In other words, if an employee is entitled eligible to for both FMLA leave and paid leave such as sick, personal or vacation time, the employee is required to use all applicable paid leave before unpaid leave is granted, however paid leave must be taken at the onset of the absence. Once the City is informed or becomes aware that the employee has an FMLA qualifying event, the City shall designate any leave taken from the onset as FMLA leave, regardless of employee preference and alternative types of leave available. If paid leave is available to the

employee, the employee's paid leave will run concurrently with the FMLA leave from the onset.

Intermittent/Reduced Schedule Leave – Under certain circumstances, the FMLA permits employees to take leave on an intermittent basis or to work a reduced schedule:

- (1) When medically necessary to care for a seriously ill family member, or because of the employee's serious health condition.
- (2) To care for a newborn or newly placed adopted or foster care child only with the employer's approval.

Employees needing intermittent or reduced leave for foreseeable medical treatment must work with their Supervisor or Division Head to schedule the leave so as not to unduly disrupt the employer's operations. In such cases, the City may require the employee to transfer temporarily to an available position with equivalent pay and benefits which better accommodates recurring periods of leave than does the employee's regular position.

Where the necessity for a leave is foreseeable, employees are expected to provide at least 30 days' advance notice. Where unanticipated events or unusual circumstances prevent 30 days' advance notice, the employee is expected to provide notice of the leave at the earliest possible date.

With any request for a leave involving serious illness of the employee or the employee's spouse, child or parent, the City shall require written certification of the illness from the health care provider of the seriously ill person. Information regarding the specific items which must be addressed in the certificate may be obtained from the Human Resources Director. Under certain circumstances, the City may, at its expense, require the employee seeking the leave to obtain the opinion of one or more independent health care providers. The City may also require an employee to provide periodic certificates, as necessary and reasonable, from the treating health care provider during the course of the leave. In such circumstances, the employee is required to return completed certifications from the treating health care provider to the City. Where the leave was occasioned by a serious health condition of the employee, the employee must present a certificate from the employee's health care provider releasing the employee to return to work.

Upon return from leave all hourly and most salaried employees will return to the position held at the commencement of the leave or to an equivalent position.

If the Employee fails to return to work upon expiration of the leave the City may, where circumstances warrant, recover the amount which the City contributed to the employee's health insurance premiums during the period of the leave.

Serious Health Condition means an illness, injury, impairment, or physical or mental condition that involves:

Any period of incapacity or treatment connected with inpatient care (i.e., an overnight stay) in a hospital, hospice, or residential medical care facility.

- (1) Any period of incapacity requiring absence of more than three calendar days from work, school or other regular daily activities that also involves continuing treatment by (or under the supervision of) a health care provider.
- (2) Any period of incapacity due to pregnancy, or for prenatal care.
- (3) Any period of incapacity (or treatment therefore) due to a chronic serious health condition (e.g., asthma, diabetes, epilepsy, etc.).
- (4) A period of incapacity that is permanent or long-term due to a condition for which treatment may not be effective (e.g., Alzheimer's, stroke, terminal diseases, etc.).
- (5) Any absences to receive multiple treatments (including any period of recovery therefrom) by, or on referral by, a health care provider for a condition that likely would result in incapacity of more than three consecutive days if left untreated (e.g., chemotherapy, physical therapy, dialysis, etc.).

Active Duty Leave – an employee may take up to 12 weeks of unpaid FMLA leave for any qualifying exigency (as defined by regulation) related to a spouse, son, daughter or parent's active duty or notification of an impending call or order to active duty in the Armed Forces in support of a contingency operation.

Service member Family Leave (Caregiver) – an employee who is the spouse, son, daughter, parent or next of kin of a covered service member is entitled to a total of 26 workweeks of leave during a 12-month period to care for the service member. The leave is available during a single 12-month period.

Section 34.3 Court and Military Leave. The Employer agrees to comply with State and Federal laws governing paid court and military leaves. If an Employee requires an additional twenty-four (24) hours of paid leave in addition to what is provided under Ohio Revised Code to travel to the location of an active duty assignment, this will be granted at the Fire Chief's discretion.

ARTICLE 35

PERSONAL LEAVE

Section 35.1. Employees shall receive forty-eight (48) hours of paid personal leave each year. Personal leave may be used for any purpose, including those purposes for which another form of leave is designated. Such leave may not be carried over into the next calendar year and may not be converted to pay or another form of leave. Personal leave is considered "Hours Worked".

ARTICLE 36

TRADING DUTY TIME

Section 36.1. At the Fire Chief's discretion and with the approval of the Fire Chief or his/her designee, Employees shall have the ability to exchange shifts when the change does not interfere with the operation of the Fire Division. Responsibility for arrangement for the repayment of such time rests with the employees involved. Employees will immediately inform the scheduling officer of the trade, or the shift supervisor if there is less than forty-eighty (48) hours to the start of the traded shift.

ARTICLE 37

UNIFORMS & EQUIPMENT

Section 37.1 Initial Issuance. Initially when a Fire Division employee is hired, the Employer shall supply at no cost to the Employee all uniforms and equipment required by the Employer, excluding socks and underwear, in quantities specified herein, including uniforms and other items required should a member be on a FEMA / USAR or other specialized services team.

- A. 5 - t shirts
- B. 5 - pairs of pants
- C. 2 - short sleeve button ups
- D. 1 - long sleeve button up
- E. 2 - job shirts
- F. 1 - winter coat
- G. 1 - winter hat
- H. 1 - baseball hat
- I. 1 - dress uniform, complete
- J. 2 – shirt badges
- K. 2 – nameplate
- L. 2 – sets of collar rank insignia, if applicable
- M. 1- belt
- N. 1 – pair of station boots

Upon receiving a promotion, Employees shall receive all appropriate upgrades commensurate with the Employee's new rank.

Equipment, insignia, buttons, and other items not issued or required by the Employer may be utilized or worn only with the permission of the Fire Chief.

Section 37.2 Ownership. All uniforms and equipment issued by the Employer, or for which a reimbursement was issued, are and shall remain the property of the Employer. Upon termination of employment of any bargaining unit Employee, all uniforms and equipment shall be returned to the Employer, allowing for reasonable wear and tear, prior to the issuance of any final compensation to the Employee.

Section 37.3 Replacement. All uniforms shall be replaced on an “as needed” basis due to damage, fading, or other conditions that makes the uniform unacceptable for duty. The Employee will notify the Employer of their needs and the purchases will be at the discretion of the Employer. The Chief shall have final say in any questionable needs.

Section 37.4 Laundry. The Employer will make available at each station a washing machine, dryer, and sufficient facilities so that Employees can launder uniforms, kitchen and bathing towels, and bed linens. Structural firefighting gear, mopheads, and towels/rags used on fire apparatus shall not be cleaned by utilizing machines intended for uniforms and linens. The City shall provide and maintain a washing machine designed specifically for Structural Firefighting Gear.

Section 37.5 Structural Gear. The City shall purchase required structural firefighting gear for all employees of the Oxford Fire Division. Structural firefighting gear will be repaired and replaced as needed and maintained in accordance with Ohio law and Administrative Code.

Section 37.6 Damage to Personal Property. Where a bargaining unit Employee supplies evidence that he/she sustained damage to personal property that is work-appropriate while performing the duties of their/her assigned work, the Employer shall reimburse the Employee for the cost of necessary repairs or replacement up to a maximum of five hundred dollars (\$500.00) per contract term (per three years unless the duration of the Agreement provides otherwise). Requests for reimbursement require review and approval by the Fire Chief and/or City Manager.

Section 37.7 Retirement. Upon retirement, Employees shall be permitted to keep their fire helmets, fire boots and metal badges without the replacement cost being deducted from any final pay or compensation due the Employees upon their separation.

ARTICLE 38

VACATION LEAVE

Section 38.1 General. Bargaining unit employees shall be granted vacation leave with full pay, annually, based on their length of service to prior public employers and their full-time employment with the City, and subject to the terms of this Agreement.

At hire for a position in the bargaining unit, any previous service as a public employee will be credited toward their length of service for the calculation of vacation leave allocation. Years of full-time service will be credited in full. Part-time service will be counted as half of a year for each calendar year they worked not less than one thousand two hundred (1200) hours for a public employer. Employment by multiple public employers may be combined service to give a length of service credit of not more than one year for a calendar year of employment.

Vacation time is considered “Hours Worked”.

Section 38.2 Allotment.

Vacation shall be earned as follows:

Length of Service	Eligible Vacation (40 hour employees)	
1st through 4th Anniversary	80 hours	
5th through 9th Anniversary	120 hours	
10th through 14th Anniversary	160 hours	
15th Anniversary and Subsequent	200 hours	

Length of Service	Eligible Vacation (24/48 Hour Employees)
Hire	72 Hours
1-4	120 Hours
5-9	144 Hours
10-14	180 Hours
15-19	216 Hours
20+	240 Hours

Section 38.3 Administration. Employees may carry over the previous year’s allotment of earned hours, plus an additional 72 earned hours annually.

Whenever two or more employees in the same work unit wish to take their vacation at the same time and the work schedule of the department or division is such that not all employees can take their vacations at the same time, seniority as a City employee shall be the determining factor in deciding who shall have preference in selecting vacation dates. If an employee already has the vacation request submitted and approved the senior employee cannot override the approved request.

An employee who is terminated from their or her employment for cause or who quits their or her job without giving two weeks working notice shall not be entitled to vacation pay upon such termination.

Employees leaving the employment of the City, through either retirement or voluntary resignation, shall be entitled to unused vacation pay, which will be included in the final pay check.

Full-Time employees must be in active pay status for at least one year of continuous service to be eligible for a paid vacation or request and receive approval from the City Manager to take a paid vacation with less than one year of continuous service.

In the case of forty (40) hour employees, a holiday which is observed on a regular work day occurring during an employee's vacation will not count as a day of vacation.

ARTICLE 39 **WAGES AND COMPENSATION**

Section 39.1 Wages. All annual salaries shall be applied from January 1 to December 31 of the corresponding year, outlined in Table 14.1 of this article. Any adjustment needed from the ratification date of this agreement back to January 1, 2021 shall be paid to the employee in the next pay period following the ratification.

Table 14-1

	2021	2022	2023
Firefighter/Paramedic	\$71,795.35	\$74,667.16	\$77,280.51
Captain	\$80,300.86	\$83,512.89	\$86,435.84

Firefighter/Paramedic salary shall be calculated from Table 14.1 as follows:

In first year, pending Paramedic certification	80% of applicable rate
In first year, once holding paramedic certification	85% of applicable rate
With 12 months of service	90% of applicable rate
With 24 months of service	95% of applicable rate
With 36 months of service	100% of applicable rate

Captain salary shall be calculated from Table 14.1 as follows:

External hire Employees for the position of Captain shall have their salary calculated from Table 14.1 as follows:

Start of service / in rank	85% of applicable rate
With 12 months in rank	90% of applicable rate

With 24 months in rank	95% of applicable rate
With 36 months in rank	100% of applicable rate

Employees promoted from within the City Fire Division for the position of Captain shall have their salary calculated from Table 14.1 as follows:

Start of service/in rank	90% of applicable rate
After 6 months in rank	95% of applicable rate
After 12 months in rank	100% of applicable rate

Section 39.2 Training Pay. When possible and at the Fire Chief's discretion, Continuing Educational opportunities shall be made available in-service to employees to maintain required certifications. The City shall make available to Employees all training hours required for certification. It shall be the individual responsibility of each Employee to ensure that he or she attends the trainings offered by the City in order to maintain certification. All outside training courses must be approved by the Fire Chief to ensure the training meets the operational needs of the City. Employees assigned to or approved by the Fire Chief or their Designee to attend training during working hours will be released from duty without loss of pay. Training hours are considered "Hours Worked".

The expenses for permanent, full-time Employees who are required, or requested, by the City to attend training programs, schools, or other instructional programs shall be reimbursed by the City as follows:

- A. Registration fees or tuition.
- B. Costs of lodging, meals and mileage shall be at the same terms and conditions as other City employees as set forth in the City of Oxford Travel Policy or as otherwise set by ordinance.
- C. Other incidental expenses as approved in advance by the Fire Chief (when appropriate the Fire Chief may authorize a per diem to cover such expenses).

For training day(s) outside the City and Oxford Township, the City will attempt to schedule Employees so that attendance at such training as well as related travel time will coincide with the Employee's normal work week. Employees attending training that is multiple days and requires travel outside the area, may work a 40 hour work week for that particular week. "Outside the area" shall be defined as travel to any location greater than 100 miles from the City of Oxford Fire Department. An employee attending training will not be paid less than their normal rate in a three (3) day period. Twenty-four (24) hour shifts may be divided into eight (8) hour increments for multiple day training classes.

For training day(s) (including in-service) within the City or Oxford Township, normal compensation rules apply.

Section 39.3. Pension. Eligible Employees of the City of Oxford Fire Division shall participate in the Ohio Police & Fire Pension Fund. The mandatory employee contributions required to be paid

under Section 742.31 of the Ohio Revised Code shall be withheld by the Employer through a payroll deduction and forwarded on behalf of the employee to the Ohio Police & Fire Pension Fund.

Section 39.4 Academic Incentive. For Employees who receive a final grade of “B” or “Pass” in a course graded on a “Pass-Fail” basis, the City will reimburse the Employee for fifty percent (50%) of the costs of required books, tuition and course-related fees, up to a maximum of one thousand dollars (\$1,000) per Employee per contract year, and until the tuition reimbursement fund (“the Fund”) is depleted,.

An Employee who receives a final grade of “A” will receive full reimbursement for tuition and course-related fees, up to a maximum of one thousand dollars (\$1,000) per employee per contract year, until the Fund is depleted. As the Fund is limited, the Academic Incentive contained within this article is available on a first come, first served basis and there shall be no entitlement to reimbursement in accordance with this article if the Fund is depleted.

The City will place three thousand dollars (\$3,000) in the Fund each contract year. If a balance remains in the Fund at the end of the contract year, the balance shall carry-over to the following contract year. The City will issue requests for reimbursement consistent with this Article within fourteen (14) calendar days of receipt of proof of grade and itemized receipts, tuition and fees. All courses must be approved in advance, in writing, by the City Manager. Only job-related course work and major fields of study shall receive this benefit.

Section 39.5 Premium Pay. Employees who pick up emergency overtime or agree to hold over their shift on a holiday as defined in Article 25 shall be compensated at a rate of two times their appropriate rate of pay (Double Time) for all hours worked on the holiday, but not less than four (4) hours, except when directly connected to the start or end time of a scheduled shift. This premium pay shall not be eligible to be converted to compensatory time.

ARTICLE 40

MANDATORY TRAINING

Section 40.1. Employees will be given no less than ten (10) days’ notice for trainings that are deemed “mandatory.” Notices less than ten (10) days will not be subject for discipline if an employee does not attend. Scheduled and approved time off made prior a mandatory training notice are excusable absences. All employees will do their best to attend mandatory trainings. An employee’s absence due to unforeseen circumstances may be excused by the Fire Chief. Employees must fill out the “Mandatory Training Absence” form prior the scheduled training and turn it in to the Fire Chief.

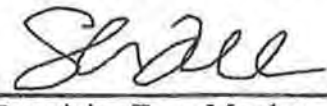
ARTICLE 41
EXECUTION

Section 41.1. IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be duly executed.

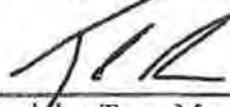
IAFF LOCAL 5272:



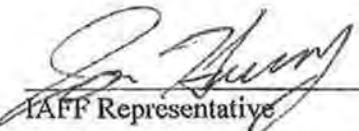
Bargaining Team Member



Bargaining Team Member



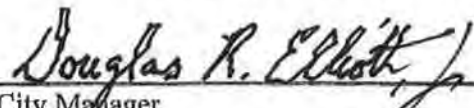
Bargaining Team Member



IAFF Representative

Dated: 2/7/22

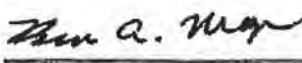
FOR THE CITY OF OXFORD:



City Manager



Fire Chief



Assistant Law Director

Dated: 2/10/22